AGRIVI OPEN MINING (PRIVATE) LIMITED
and
MOLLY DICK

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 14, 22 and 26 May 2026

Opposed Application

Mr *A. Mutima* with *Mr A. Moyo*, for the applicant
Ms *C. P. Chikowero*, for the respondent

MAMBARA J:

[1] When this matter first came before me, I encouraged the parties to settle it and I indicated to them that, on the face of the papers, a sensible consent order appeared possible. The parties were unable to settle. Happily, the dispute was narrowed considerably. The only live issue is whether the respondent may, on the footing that coordinate A in clause 4.1 of the Joint Venture Agreement was wrong, interfere with the applicant's mining operations in the 50 hectares allocated to it under that agreement.

[2] The contractual background is largely common cause. The respondent is the holder of Special Grant No. 6873 over 186 hectares. By the Joint Venture Agreement of 7 April 2021, she contributed 50 hectares to the venture, the boundaries of that 50-hectare area being described in clause 4.1 by coordinates. The agreement further left statutory rights and obligations under the Mines and Minerals Act with the respondent, while vesting operation of the mining business in the applicant. The addendum of 26 August 2022 records that the applicant had discharged its payment obligations and would enjoy undisturbed occupation and use of the demarcated portion pending the statutory processes contemplated by the parties.

[3] The respondent's complaint is not that there was no joint venture. It is that coordinate A was wrong, that this generated a dispute with a neighbouring farmer, and that the area being mined had to be brought into conformity with the grant. The papers support that limited

complaint. A letter dated 5 December 2022 addressed by the respondent to the Provincial Mining Director sought "to adjust coordinate A of Special Grant 6873" and stated that, because of the neighbour dispute, the area of interest was discovered to be outside the special grant though within farm boundaries.

[4] The requirements for a final interdict are trite. The applicant must establish a clear right, an injury actually committed or reasonably apprehended, and the absence of a satisfactory alternative remedy. That position has long been settled since *Setlogelo* v *Setlogelo* 1914 AD 221 and continues to be applied by the courts.

[5] In my view the applicant has established the requisite right. Its entitlement does not float in the air. It arises from a written Joint Venture Agreement, amplified by an addendum, under which the respondent identified and set aside 50 hectares for the joint venture and the applicant assumed operational control over that area. In *MIDKWE Minerals Ltd* v *Kwekwe Consolidated Gold Mines (Pvt) Ltd & Ors* SC 54/13 the Supreme Court made plain that a party who cannot point to the operative mining instrument from which its rights derive cannot establish a right to mine. The converse is equally true. Here the applicant has pointed to a subsisting instrument from which its rights derive.

[6] The respondent was not, in law, entitled to depart from that arrangement merely by asserting from the bar that one coordinate was mistaken. It is an elementary proposition that he who alleges must prove. The Supreme Court reiterated in *Smit Investment Holdings SA (Pty) Ltd & Anor* v *Sheriff of Zimbabwe & Anor* SC 33/18 that a litigant who levels allegations must adduce evidence to prove them and that bald averments are insufficient. No expert survey, official determination, or comparable evidence was placed before me to justify unilateral interference with the applicant's operations.

[7] That, however, is not the end of the matter. The court must also respect the mining statute and the grant instrument. The respondent could only contribute to the venture what she lawfully held under the special grant. In *Bubye Minerals (Pvt) Ltd* v *Minister of Mines & Mining Development & Ors* SC 3/11 it was emphasized that a special grant is governed by its terms and conditions and that public officials must act within the authority conferred by law and by the grant itself. The statutory scheme also contemplates that, after issue of a special grant, a portion of it may be pegged and registered in accordance with the Act.

[8] It follows, in my view, that the respondent is correct only to this limited extent: the applicant's 50 hectares must lie within the area lawfully covered by the grant instrument, and any lawful technical correction or confirmation by the mining authorities must be respected. But that does not entitle the respondent to suspend or invade the bargain. Courts do not make contracts for parties. They enforce contracts. The Supreme Court in *Magodora & Ors* v *CARE International Zim* SC 24/14 reaffirmed that it is not open to a court to rewrite a contract voluntarily entered into by the parties or to excuse either of them from its consequences merely because those consequences later become inconvenient.

[9] I should add that no present order of transfer is warranted. Both the agreement and the addendum make transfer dependent on the further statutory processes contemplated by the parties, including upliftment of reservation and the statutory conversion of the relevant portion into registrable blocks. Section 296 of the Mines and Minerals Act reflects that sequence. The live dispute before me is about interference and operational control, not present enforceability of transfer.

[10] In mining-boundary and pegging disputes, the Provincial Mining Director and related mining authorities have an acknowledged administrative role. Recent High Court decisions have treated the Provincial Mining Director's role and evidence as central in pegger or boundary disputes, and courts have, where appropriate, directed that mining-boundary issues be investigated through that office. The proper course is therefore to preserve the applicant's contractual operational rights while expressly subjecting the order to any lawful confirmation, correction, or beacon adjustment effected by the competent mining authority.

[11] That approach does justice to both sides. It holds the respondent to the Joint Venture Agreement. It protects the applicant from interference. At the same time, it recognizes that the 50 hectares must remain within the area lawfully covered by the special grant and that any technical statutory correction must be given effect. Any shift in coordinates must not diminish the agreed hectarage or alter the substance of the joint venture.

[12] On costs, I am not persuaded that a punitive order is justified. The respondent raised a bona fide issue of statutory alignment, but she was not entitled to self-help. Ordinary costs will suffice.

[13] In the result, the following order is made:

It is ordered that:

The application for a final interdict be and is hereby granted.

The respondent, and all persons acting through or under her, are hereby interdicted from interfering with the applicant's mining operations on the 50 hectares allocated to the applicant under the Joint Venture Agreement within Special Grant No. 6873.

The respondent shall cease all unauthorized mining activities within that area and shall not introduce equipment or personnel into that area without the applicant's prior written consent.

For the avoidance of doubt, paragraphs 2 and 3 above are subject to any lawful confirmation, correction, coordinate adjustment, or beacon adjustment effected by the Provincial Mining Director or any other competent mining authority under the Mines and Minerals Act, provided that:

(a) the applicant's allocated hectarage remains 50 hectares;

(b) the area remains within the land lawfully covered by Special Grant No. 6873; and

(c) the substance and essence of the Joint Venture Agreement are not altered.

Nothing in this order authorizes the applicant to mine outside Special Grant No. 6873 as lawfully confirmed or corrected by the competent mining authorities.

The prayer for immediate transfer of the mining area is not granted at this stage, such relief being premature pending completion of the statutory processes contemplated by the agreement and the Mines and Minerals Act.

The respondent shall pay the applicant's costs on the ordinary scale.

MAMBARA J……..

Jiti Law Chambers, applicant's legal practitioners
Muvirimi Law Chambers, respondent's legal practitioners